

March 27, 2026, Civil Law & Motion Tentative Rulings

1. CU0001237 Peter Lindley vs. Regional Emergency Medical Services Auth., et al.

On the Court's motion, this matter is continued to March 27, 2026, at 1:00 p.m. The parties shall appear for argument limited to no more than 10 minutes per side.

2. CU0002209 Julli Conde vs. City of Nevada, et al.

Defendant Inn Town Development, LLC's motion to compel discovery is denied. Defendant's request for sanctions is granted in the amount of \$1,060.00.

Plaintiff filed untimely responses. As such, the motion to compel is denied as moot.

A court retains the authority to hear a motion to compel even after responses are served, as the court may still award sanctions in favor of the propounding party due to the responding party's failure to provide timely responses. *See Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409. At bar, Plaintiff failed to provide timely responses to the discovery requests, which forced Defendant to file the present motion to compel. No good cause or justification has been provided for Plaintiff's inaction. Defendant is entitled to sanctions for the cost of bringing the motion. The Court awards sanctions against Plaintiff in the amount of \$1,060.00 for reasonable attorney's fees in relation to the instant motion, payable by Plaintiff to Defendant within thirty (30) days of the hearing date.

3. CU0002355 Scott Baker vs. Tahoe Forest Hospital District

Defendant Tahoe Forest Hospital District's Demurrer to Plaintiff's complaint is sustained without leave to amend as to the second cause of action for breach of contract and the third cause of action for breach of the implied covenant of good faith and fair dealing.

Legal Standard

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. The court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff's claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-14.

Second Cause of Action – Breach of Contract

Defendant argues that Plaintiff, an employee of a public entity, cannot state a cause of action for breach of his employment contract. The Court agrees.

It is well settled that public employment in California is held by statute, not by contract. *Miller v. California* (1977) 18 Cal.3d 808, 813. Thus, no public employee has a vested contractual right because the employee occupies a civil service position. *Id.* The statutory provisions control the terms and conditions of civil employment and “cannot be circumvented by purported contracts in conflict therewith.” *Id.* Whether in the civil service or not, public employees cannot state a cause of action for breach of contract. *Kim v. Regents of Univ. of Cal.* (2000) 80 Cal.App.4th 160, 164.

At bar, Plaintiff seeks remedies in the second cause of action due to a purported breach of a condition or term of his employment, namely notice. See Complaint ¶ 29. As such, the contract claim is barred under controlling law. Plaintiff argues he can maintain a cause of action as to other breaches of the employment agreement besides his termination or duration of employment, such as lack of notice. The Court is not persuaded. Indeed, Plaintiff fails to cite any specific authority establishing such a right. The court sustains the demurrer as to this cause of action.

Third Cause of Action – Breach of Implied Covenant of Good Faith and Fair Dealing

Defendant argues Plaintiff’s claim for breach of the implied covenant of good faith and fair dealing fails for the same reason; *i.e.*, no implied covenant of good faith and fair dealing exists because public employment is governed by statute, not contract. The Court again agrees.

The covenant of good faith is an implied term arising out of a contract itself. *Kim*, 80 Cal.App.4th at 164. “The existence of a contractual relationship is thus a prerequisite for any action for breach of the covenant.” *Id.* (plaintiff cannot state a cause of action for breach of implied covenant of good faith because her status as a public employee barred her contract claim).

At bar, as noted previously, Plaintiff, a public employee, cannot state a contract claim against Defendant. Moreover, Plaintiff fails to cite any authority to support his position that this claim is allowed for a breach distinct from his termination. The Court sustains the demurrer as to this cause of action.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348. The burden is on the plaintiff to show a court a pleading can be amended successfully. *Ibid.*

Plaintiff has failed to demonstrate a fair probability that he can cure the noted defects in his brief. On the current record, the demurrer is sustained without leave to amend.

Defendant Kropp's demurrer to Plaintiff's complaint is sustained with leave to amend. Plaintiff shall file and serve its amended complaint within 10 days of service of the order after hearing.

Legal Standard

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. The court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff's claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-14.

First Cause of Action – Negligence

Defendant argues the complaint fails to allege *how* Defendant caused the fire at issue. The Court agrees.

The elements of a negligence cause of action are: (1) duty, (2) breach of duty; (3) proximate cause; and (4) damages. *Predia v. HR Mobile Services, Inc.* (2018) 25 Cal.App.5th 680, 687. A breach is the failure to meet the standard of care, and the element of causation requires there be a connection between the defendant's breach and the plaintiff's injury. *Coyle v. Historic Mission Inn Corp.* (2018) 24 Cal.App.5th 627, 643.

At bar, the Complaint alleges: a children's ride-on car normally charged in the *northern* quadrant of the garage, using an extension cord plugged into a duplex receptacle *northeast* of the dryer, Complaint 7:1-4 (emphasis added); the extension cord was wrapped on the floor near a pile of Christmas lights in the same quadrant of the garage, Complaint 7:6-8; investigators observed that the upper portion of the duplex receptacle had a white appearance consistent with a power cord having been plugged into it at the time of the fire, but it is unclear which power cord was plugged in, Complaint 7:21-8:2; investigators also observed another overhead receptacle arrangement powered by a yellow extension cord in the *northwestern* wall of the garage, but it is unclear who installed such, Complaint 8:8-22 (emphasis added); the investigation concluded that the area of origin of the fire was on or near the *western* quadrant of the garage, Complaint 9:11-13 (emphasis added); the data gathered determined the initial ignition or heat source of the fire remains unresolved, Complaint 9:16-18; *potential* ignition sources include the lithium-ion or lithium polymer batteries from the car, Complaint 9:21-24 (emphasis added); *potential* fuel sources include the plastic components of the kids car; Complaint 9:27-28 (emphasis added); the